

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JAQUAN RILEY,

Plaintiff,

-against-

POLICE OFFICER CONOR KUBIC, Shield No. 31060,
SERGEANT JOHN TOSCANO, POLICE OFFICER
PATRICK O'DONNELL, Shield No. 27349, SERGEANT
CHERYL SHEA, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 11, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER CONOR KUBIC, Shield No. 31060, Patrol Borough Manhattan North, 151 W. 100th Street, New York, NY 10025
SERGEANT JOHN TOSCANO, Patrol Borough Manhattan North, 151 W. 100th Street, New York, NY 10025
POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, 25th Precinct, 120 E 119th St, New York, NY 10035
SERGEANT CHERYL SHEA, 25th Precinct, 120 E 119th St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JAQUAN RILEY,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER CONOR KUBIC, Shield No. 31060,
SERGEANT JOHN TOSCANO, POLICE OFFICER
PATRICK O'DONNELL, Shield No. 27349, SERGEANT
CHERYL SHEA, and POLICE OFFICERS JOHN DOES
#1-10 (names and number of whom are unknown at
present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JAQUAN RILEY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 16, 2016, at approximately 3:30 p.m., plaintiff was lawfully in front of his apartment building located at 1900 Lexington Avenue, New York, New York, about to walk into his building when defendants subjected plaintiff to an unlawful stop, question, frisk, search, seizure, false arrest and imprisonment. Plaintiff was unlawfully handcuffed, falsely arrested and transported to the 25th Precinct against his will by defendants. The police officers unlawfully detained plaintiff for approximately 30 hours until he was arraigned in New York County Criminal Court and charged with crimes he did not commit, and that the officers lacked probable cause to accuse him of committing. Plaintiff was denied the right to due process/ right to a fair trial and maliciously prosecuted by the police officers when they initiated a criminal prosecution against him without probable cause, based upon fabricated allegations against plaintiff made by defendants. Plaintiff was required to appear in criminal court on 4 occasions and endure a 4 month criminal prosecution before all charges against him were dismissed and sealed in their entirety on December 6, 2016. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, seized, confined, arrested, imprisoned, denied his rights to due process and a fair trial,

and maliciously prosecuted plaintiff violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JAQUAN RILEY is and was at all relevant times herein a resident of the State of New York.

3. POLICE OFFICER CONOR KUBIC, Shield No. 31060, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CONOR KUBIC, Shield No. 31060, is and was at all times relevant herein, assigned to the Patrol Borough Manhattan North Squad.

5. POLICE OFFICER CONOR KUBIC, Shield No. 31060, is being sued in his individual and official capacity.

6. SERGEANT JOHN TOSCANO is and was at all times relevant herein, an officer, employee, supervisor and agent of the New York City Police Department.

7. SERGEANT JOHN TOSCANO is and was at all times relevant herein, assigned to the Patrol Borough Manhattan North Squad.

8. SERGEANT JOHN TOSCANO is being sued in his individual and official capacity.

9. POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is and was at all times relevant herein, assigned to the 25th Precinct.

11. POLICE OFFICER PATRICK ODONNELL, Shield No. 27349, is being sued in his individual and official capacity.

12. SERGEANT CHERYL SHEA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT CHERYL SHEA, is and was at all times relevant herein, assigned to the 25th Precinct.

14. SERGEANT CHERYL SHEA, is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant herein, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On August 16, 2016, at approximately 3:30 p.m., plaintiff was lawfully in front of his apartment building located at 1900 Lexington Avenue, New York, New York, about to walk into his building, when the defendant police officers stopped, questioned, and frisked plaintiff without probable cause or any legal justification.

23. At no time prior to stopping, question, and frisking plaintiff did defendants possess evidence to establish reasonable suspicion or probable cause to believe plaintiff was committing, had committed, or intended to commit a crime.

24. At no time relevant herein did plaintiff commit any crime nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed a crime or violate the law in any way.

25. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

26. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested plaintiff without probable cause or any legal justification.

27. The defendant police officers transported plaintiff against his will to the 25th Precinct where he was unlawfully photographed, searched, fingerprinted, and detained in a holding cell.

28. Upon conducting the unlawful search of plaintiff, the defendant police officers recovered a small, legal knife from plaintiff.

29. No reasonable police officer would believe that the small pocket knife was illegal under any New York State statute and/or penal law.

30. On August 17, 2016 at approximately 2:00 a.m., after many hours in custody at the 25th Precinct, plaintiff was transported to New York County Central Booking and detained in a holding cell.

31. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts in their possession that they purportedly used to establish probable cause to arrest and/or prosecute plaintiff, including but not limited to falsely alleging that the knife claimant had in his possession at the time he was arrested was not a legal knife for plaintiff to carry

32. Based upon the false, misleading and/or incomplete information, facts and/or evidence provided to the District Attorney's Office by the defendant police, a criminal prosecution was initiated against plaintiff wherein plaintiff was accused of committing crimes he did not commit and for which the officers lacked probable cause to accuse him of committing.

33. On August 17, 2016 approximately 30 hours after the defendants unlawfully seized plaintiff, he was arraigned in New York County Criminal Court, charged with crimes he did not commit, and released on his own recognizance.

34. The defendant police officers unlawfully charged plaintiff with Criminal Possession of a Weapon in the Fourth Degree and Obstruction of Governmental Administration in the Second Degree without legal justification or probable cause.

35. Thereafter, plaintiff was required to appear in court for crimes he did not commit on approximately four occasions.

36. On December 6, 2016, all charges against plaintiff were dismissed and sealed in their entirety.

37. As a result of the false arrest and imprisonment of plaintiff, plaintiff lost his job at MicroCenter, where he was making approximately \$12.00 per hour.

38. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure and prosecution of plaintiff.

39. The unlawful search, false arrest, and false imprisonment, excessive force, and denial of plaintiff's right to due process and a fair trial plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted and denied the right to due process/right to fair trial without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

55. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

61. Defendants commenced and continued a criminal proceeding against plaintiff.

62. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

63. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

64. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

71. In withholding/creating false evidence against plaintiff Jaquan Riley and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional rights to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

72. As a result of the foregoing, plaintiff Jaquan Riley sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

77. Defendants commenced and continued a criminal proceeding against plaintiff.

78. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

79. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

80. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jaquan Riley demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 13, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 13, 2019

_____/s/_____
DAVID M. HAZAN